**IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH**
**(*through* Hybrid Mode)**
**COURT-I**

**Item No. 5**

**COMP.APPL/1(CH) 2025**
**and**
**CA(CAA) No. 35/Chd/Hry/2024**
**(1st Motion)**
**(Order Reserved on 04/10/2024)**

**IN THE MATTER OF:**

Calleis Constructions Private Limited & Anr …Transferor Companies

**Under Section:** 230-232, CA 2013, Rule 11 of NCLT

**Order delivered on 03.01.2025**

**CORAM:**

**SH. UMESH KUMAR SHUKLA**
**HON'BLE MEMBER (T)**

**SH. HARNAM SINGH THAKUR**
**HON'BLE MEMBER (J)**

**PRESENT:**

For the petitioner : Mr. Atul V Sood, Advocate

**ORDER**

**COMP.APPL/1(CH) 2025**

The present application has been filed on behalf of the petitioner companies for the revocation of the scheme and for the withdrawal of the first motion petition, which was reserved on 04.10.2024 in CA(CAA) No. 35/Chd/Hry/2024. It is stated by Ld. counsel for the petitioner that resolutions have been passed by the Board of Directors of the respective companies, that due to change in the business dynamics, the scheme of amalgamation has lost its economic value, and the effect of implementation of scheme may have adverse implications on the company. As per Clause 24.3 at Page No.154 of Volume-I, the shareholders have authorized the Board of Directors of the respective companies through inbuilt clause in the scheme itself for revocation of consideration of the scheme at the behest of the Board of Directors. Keeping in view

these facts and circumstances, the order which was reserved on 04.10.2024 in CA(CAA) No. 35/Chd/Hry/2024 is de-reserved and Court Officer is directed to put the same in the cause list today itself in the supplementary list.

Sd/-
**(UMESH KUMAR SHUKLA)**
**MEMBER (T)**

Sd/-
**(HARNAM SINGH THAKUR)**
**MEMBER (J)**

PBS

**IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH**
**(*through* Hybrid Mode)**
**COURT-I**

**Supplementary Cause List Item No. 1**

**CA(CAA) No.35/Chd/Hry/2024**
**(1st Motion)**

**IN THE MATTER OF:**

Calleis Constructions Pvt. Ltd. & Anr. ….Transferor Companies

**Under Section:** 230-232, CA 2013

**Order delivered on 03.01.2025**

**CORAM:**

**SH. UMESH KUMAR SHUKLA**
**HON'BLE MEMBER (T)**

**SH. HARNAM SINGH THAKUR**
**HON'BLE MEMBER (J)**

**PRESENT:**

For the Petitioner : Mr. Atul V. Sood, Advocate

**ORDER**

File taken up on the basis of order passed today in Item No.5 of the cause list.

In view of the order passed today in Item No.5 of the supplementary cause list, CA(CAA) No.35/Chd/Hry/2024 is ***dismissed as withdrawn***, subject to the cost of Rs. 25,000/- to be deposited in the Prime Minister's National Relief Fund within one week.

Thus, COMP.APPL/1(CH) 2025 is ***disposed of accordingly***.

Sd/-
**(UMESH KUMAR SHUKLA)**
**MEMBER (T)**

Sd/-
**(HARNAM SINGH THAKUR)**
**MEMBER (J)**

PBS